

Amendment No. 1 to SB2222

Gardenhire
Signature of Sponsor

AMEND Senate Bill No. 2222

House Bill No. 2109*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Title 29, Chapter 34, Part 2, is amended by adding the following as a new section:

(a) As used in this section:

(1) "Compensation" means a salary, fee, payment, reimbursement, or other valuable consideration, or combination thereof, whether received or to be received;

(2) "Demonstration" means a public gathering of one (1) or more demonstrators protesting against something or expressing views on a political issue; and

(3) "Demonstrator" means a person who takes part in-person in a demonstration.

(b) Notwithstanding a law to the contrary, a person who provides compensation to a demonstrator in exchange for the demonstrator's participation in a demonstration may be vicariously liable for damages caused by the demonstrator if the demonstrator's conduct, while participating in the demonstration for which the person compensated the demonstrator to participate, satisfies the elements of one (1) or more of the following offenses:

(1) Riot under § 39-17-302;

(2) Aggravated riot under § 39-17-303;

(3) Disorderly conduct under § 39-17-305;

- (4) Disrupting a meeting, procession, or gathering under § 39-17-306;
- (5) Obstructing a highway or passageway, or disobeying a reasonable request or order to move under § 39-17-307;
- (6) Harassment under § 39-17-308;
- (7) Civil rights intimidation under § 39-17-309;
- (8) Desecration of a venerated object under § 39-17-311;
- (9) Civil disorder under § 39-17-314;
- (10) Disorderly conduct at funerals under § 39-17-317; or
- (11) Unauthorized placement of signs or markings under § 39-17-319.

(c) In order to establish liability under this section, a plaintiff:

(1) Must prove by a preponderance of the evidence that:

(A) A defendant provided any compensation to a demonstrator in exchange for the demonstrator's participation in a demonstration and that the demonstrator's conduct satisfies the elements of one (1) of the offenses listed in subdivisions (b)(1)-(11); and

(B) The plaintiff suffered an ascertainable loss resulting from the demonstrator's conduct; and

(2) Is not required to produce evidence of a criminal conviction against the demonstrator who received compensation from the defendant.

SECTION 2. Tennessee Code Annotated, Title 50, Chapter 1, is amended by adding the following as a new part:

50-1-1201.

As used in this part:

(1) "Compensation" means a salary, fee, payment, reimbursement, or other valuable consideration, or combination thereof, whether received or to be received;

(2) "Demonstration" means a public gathering of one (1) or more demonstrators protesting against something or expressing views on a political issue; and

(3) "Demonstrator" means a person who takes part in-person in a demonstration.

50-1-1202.

Notwithstanding a law to the contrary, a person who provides compensation to a demonstrator in exchange for the demonstrator's participation in a demonstration may be vicariously liable for damages caused by the demonstrator if the demonstrator's conduct, while participating in the demonstration for which the person compensated the demonstrator to participate, satisfies the elements of one (1) or more of the following offenses:

- (1) Riot under § 39-17-302;
- (2) Aggravated riot under § 39-17-303;
- (3) Disorderly conduct under § 39-17-305;
- (4) Disrupting a meeting, procession, or gathering under § 39-17-306;
- (5) Obstructing a highway or passageway, or disobeying a reasonable request or order to move under § 39-17-307;
- (6) Harassment under § 39-17-308;
- (7) Civil rights intimidation under § 39-17-309;
- (8) Desecration of a venerated object under § 39-17-311;
- (9) Civil disorder under § 39-17-314;
- (10) Disorderly conduct at funerals under § 39-17-317; or
- (11) Unauthorized placement of signs or markings under § 39-17-319.

50-1-1203.

(a) Whenever the attorney general has reason to believe that a person who has provided compensation to a demonstrator may be vicariously liable for the

demonstrator's conduct under § 50-1-1202 and that proceedings would be in the public interest, the attorney general may bring an action in the name of the state against such person for any relief available at law or equity.

(b) The action may be brought in a court of competent jurisdiction in the county where the alleged conduct took place.

(c) In order to establish liability under this part, the state:

(1) Must prove by a preponderance of the evidence that a defendant provided any compensation to a demonstrator in exchange for the demonstrator's participation in a demonstration and that the demonstrator's conduct satisfies the elements of one (1) of the offenses listed in § 50-1-1202; and

(2) Is not required to produce evidence of a criminal conviction against the demonstrator who received compensation from the defendant.

(d) The court may make such orders or render such judgments as the court determines to be in the interest of justice.

(e) Whenever a judgment is rendered in favor of the state under this part, the court shall award reasonable costs, including attorney's fees, to the state.

50-1-1204.

This part does not prohibit an individual from seeking damages under Section 1.

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it, and applies only to acts occurring on or after that date.